NDIS Quality and Safeguards Commission

EXECUTIVE BRIEF

Executive: Branch Heads Operations, North Central West **PDR:** EC22-002000
Executive action: For decision
Critical date:
PDMS cc: nil

NOTICES TO SUSPEND, AND NOTICE TO REVOKE REGISTRATION OF FORWARD FOCUSED GROUP PTY LTD; NOTICE TO ISSUE BANNING ORDER TO VIDA REID

Recommendation/s	Executive Action
1. That you sign the notice suspending the registration of NDIS provider Forward Focused Group Pty Ltd with immediate effect. (Att 2A)	Signed
2. That you sign the notice of intention to revoke the registration of NDIS registered provider Forward Focused Group Pty Ltd and invite submissions in respect of this decision. (Att 2B)	Signed
3. That you sign notice of intention to make a Banning Order against Vida Reid , for a period of ten years and invite submissions in respect of this decision. (Att 2C)	Signed

19/10/2022

X

Signed by: PH0055

Philip Halton, Branch Head, Operations - North Central West Region

Comments:

Key Points

1. The Commission holds information to suggest that Forward Focused Group Pty Ltd (REG ID 4-4GHG-1073) has contravened, is contravening or is proposing to contravene, the NDIS Act.
2. For the reasons set out in documents provided, Compliance (WA) and Compliance (QLD/NT) considers there is sufficient evidence available for you to form the reasonable belief that Forward Focused Group Pty Ltd and Vida Reid, has contravened, is contravening or is proposing to contravene the NDIS Act, by failing to comply with their obligations.
3. Compliance WA and Compliance QLD/NT recommends you, as the delegate, review and consider the relevant parts of the information they provided (as referenced) in making your decision.

3.1. Documents were submitted to legal to seek confirmation regarding the drafted banning order and revocations documents. The input from Legal Services Branch is included at Attachment 55.

3.2. Upon receipt of that advice the Compliance team sought to address the concerns raised.

3.3. In particular an Evidence Matrix has been developed and completed for each of the contraventions and/or potential contraventions of the NDIS Act (Attachment 1A, 1B, 1C).

3.4. Also a considerations document (Attachment 1D) has been generated to clearly separate information being used to support a contravention from information being used to support a 'state of mind'.

3.5. Finally, information/evidence from the matrices is transposed to the Notices and letters to ensure procedural fairness for the recipients.

Risks / Sensitivities

4. It is likely that the Commission's action against the Provider and individual may be viewed as quite strong given that the complaints and breaches focus on administrative and personal errors.

5. The individuals involved have participated in local (WA) meetings with Federal Ministers. If the Commission decides to proceed to the completion of the notices then the loss of income will be substantial. Historical interactions with the individual/s indicate that the Commission should be prepared for a retaliatory response.

6. The individual/s will be provided with an email for providing written responses to the Commission. The contact centre will be advised of activity and ensure a suitable response protocol is available to their staff.

Background

7. The Delegations instrument, No. 2 of 2022 dated 21 June 2022, and effective 22 August 2022, provides the Branch Head, North Central West with delegation against NDIS Act s73N, s73P, and s73ZN.

Legislative Obligations

8. Section 73J of the NDIS Act provides that,

A person contravenes this section if the person:

(a) is a registered NDIS provider; and

(b) breaches a condition to which the registration of the person is subject.

Civil penalty: 250 penalty units.

9. The conditions include those provided at section 73F of the NDIS Act. Section 73F of the NDIS Act states that the registration of a person as a registered NDIS provider is subject to a number of conditions. These conditions include:

10. Section 73F(2)(b) - a condition that the person comply with all applicable requirements of the NDIS Code of Conduct;

11. Section 73F(2)(c) - a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;

12. Section 73T(1) of the NDIS Act states that the National Disability Insurance Scheme rules may make provision for or in relation to standards concerning the quality of supports or services to be provided by registered NDIS providers.

13. Further, the NDIS Act s73V provides that NDIS providers and members of the key personnel of NDIS providers must comply with the NDIS Code of Conduct, and

(3) A person contravenes this section if the person:

(a) is subject to a requirement under the NDIS Code of Conduct; and

(b) fails to comply with the requirement.

Civil penalty: 250 penalty units.

14. The NDIS Act s73N provides for the Suspension of registration on the Commission's initiative, for a specified period (not longer than 30 days) where

14.1. S73N *(1)(a) the Commissioner reasonably believes that the person has contravened, is contravening, or is proposing to contravene, this Act*; or…

14.2. S73N *(1)(e) the Commissioner is no longer satisfied that the key personnel of the person (if any) are suitable to be involved in the provision of supports or services to people with disability, having regard to any matters prescribed by the National Disability Insurance Scheme rules for the purposes of this paragraph.*

15. The NDIS Act s73P provides that registration can be revoked if the same circumstances as articulated at 14.1 are met.

16. Further, the NDIS Act s73ZN provides that Banning orders can be given if the same circumstances as articulated at 14.1 arise.

17. Both Revocation of registration and Banning orders require a process to be followed whereby a notice is issued to the relevant party affording them an opportunity to make submissions on the matter.

Financial Implications

18. Nil – activities form part of normal operations.

Regulatory Impact

19. Suspension of the registration of a provider operating in a central, city location.

20. Will be primarily determined upon receipt of submissions from the parties we are recommending documents be issued to on this occasion.

Consultation

21. Internally, Legal Services Branch, Registration team.

22. Externally, the National Disability Insurance Agency.

Kristen Walker 19 /10 / 2022
Assistant Director, Integrated compliance operations
M: 0459 906 205

Prepared by:
Katja Zerafa
Senior Compliance Officer

Attachments

Attachment 1A_Evidence matrix

Attachment 1B_Evidence matrix

Attachment 1C_Evidence matrix

Attachment 1D_considerations

Attachment 2A_Notice of suspension

Attachment 2B_Notice of intention to revoke registration and ban

Attachment 2C_Notice of intention to ban_individual

Attachment 4 - Provider Register External_Page 1 of 1_Forward Focused Group_13.09.22

Attachment 5 - NDIA Tactical Intelligence Report_18.08.22

Attachment 6 - Key Issues and Potential Breaches_FFG and Reid_13.09.22

Attachment 6A_Evidence_Information_post receipt of advice

Attachment 7 - Danica Hall Statement

Attachment 8 - DFG Legal Letter_31.03.22

Attachment 8 - DFG Legal Letter_17.08.22

Attachment 9A - Janine Hall Information_18.07.22_Part 1

Attachment 9B - Janine Hall Information_18.07.22_Part 2

Attachment 9C - Janine Hall Information_18.07.22_Part 3

Attachment 9D - Janine Hall Information_18.07.22_Part 4

Attachment 9E - Sally See FFG Counsellor Screenshot

Attachment 10 - Tabatha Sadler Email_17.07.22

Attachment 12 - Sarah-Jane Clulow Complaint_06.07.22

Attachment 13 - Jan Nuttall Complaint_11.08.22

Attachment 14 - Summary of Complaints_25.08.22

Attachment 15 _Email_Our Growth and Company structure_Forward Focused Group

Attachment 16_Email pdf attachment_Forward Focused Group_Colorful Circular Concept Map Infographic

Attachment 17_ASIC_Forward Focused Group Pty Ltd_data as at 21 September 2022

Attachment 18_ASIC_Hybrid Hive Pty Ltd_data as at 21 September 2022

Attachment 19_ASIC_The Hive_data as at 21 September 2022

Attachment 20_Forward Focused Group_CFO_Screenshot 2022-10-14

Attachment 21_Our Team_Screenshot 2022-10-14

Attachment 22_Our Team_Screenshot 2022-10-14

Attachment 23_Our team_Screenshot 2022-10-14

Attachment 24_Our team_Screenshot 2022-10-14

Attachment 25_Our Team_Screenshot 2022-10-14

Attachment 26_ Service offerings_Screenshot 2022-10-14

Attachment 27_SDA properties_Screenshot 2022-10-14

Attachment 28_SDA properties and registered provider statement_Screenshot 2022-10-14

Attachment 29_Hybrid Hive website_Screenshot 2022-10-14

Attachment 31_Hybrid Hive service offering_Screenshot 2022-10-14

Attachment 32_Searches for Counsellor Qualifications

Attachment 33_FFG_Offering SDA_Screenshot 2022-10-14

Attachment 34_FFG as overarching entity_facebook_Screenshot 2022-10-14

Attachment 35_Hive_SDA_facebook_Screenshot 2022-10-14

Attachment 36_Hive_SDA_facebook_Screenshot 2022-10-14

Attachment 37_FINAL REID Simon

Attachment 38_COS Provider Profile

Attachment 39_FFG_Offering SDA_Screenshot 2022-10-14

Attachment 40_FINAL REID Vida_Criminal and traffic

Attachment 41_7.5 NDIS-FFG_Service_Agreement - Sarah

Attachment 42_8.1 FFG is ceasing support coordination and terminating your contract

Attachment 43_8.3 FW Service termination_Sarah Jane Clulow participant

Attachment 44_8.4 RE Account Statement Clulow NDIS 430838840 Sarah - Primary Account 50854

Attachment 45_8.0 RE Alexsis Bott Changing Plan Manager

Attachment 46 - Tiffany Rose Invoices

Attachment 47 - Andrew Hahn Invoices

Attachment 48 - Marisha Lombard Invoices

Attachment 49 - Marisha Lombard Invoices

Attachment 51 - Andrew Hahn Threats of Eviction

Attachment 50 - Andrew Hahn Termination Notice

Attachment 52 - FFG Reid Consent to Act as Authorized Person

Attachment 53 - Max Teague Plan Management

Attachment 54 - Max Teague Plan Management_Email to NDIA

Attachment 55_LEX 1602 - Forward Focused Group & Vida Reid - revocation and banning order - LSB review and advice [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

NDIS Quality and Safeguards Commission

Evidence Matrix

Breach of NDIA Act s73J

S73F(2)(c) > 73T(1) > Rules > NDIS Practice Standards > Schedule 8

Forward Focus Group Pty Ltd, Vida Reid

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
Division 2—Registered NDIS providers **73J Registered NDIS providers must comply with conditions of registration** A person contravenes this section if the person: (a) is a registered NDIS provider; and (b) breaches a condition to which the registration of the person is subject Civil penalty: 250 penalty units **73F Registration is subject to conditions** (2) The registration of a person as a registered NDIS provider is subject to the following conditions: … (c) a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;	Schedule 8 **4 Complaints management and resolution** (1) Each participant has knowledge of and access to the provider's complaints management and resolution system. (2) Complaints are welcomed, acknowledged, respected and well-managed. … **6 Human resource management** Each participant's support needs are met by workers who are competent in relation to their role, hold relevant qualifications and have relevant expertise and experience to provide person-centred support.	Registered NDIS Provider	NDIS Commission provider register displayed on the website. COS provider profile. Printout and Screenshots included.	Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
		Breaches a condition – Complaints management and resolution	Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022. The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14). The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicate that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed. Example: Complaint #4-38279458621 PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues. Complaint #4-35886177923 "I would like to remain anonymous due to security reasons as I'm scared for my family at this moment in time with most recent events."	Att 14 (D22/169610) – Summary of Complaints
		Breaches a condition – Human Resource Management	Therapy team, Sally See (Masters in Sexology and specialises in couples-therapy) Janine Hall, former Support Coordinator FFG has alleged that a Ms Sally See was employed by FFG as a counsellor until 5 April 2022 (Att 9). This is supported by a search conducted on the FFG website (Att 25). According to searches conducted on 13 October 2022, Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). (Att 32).	Att 6A (D22/184618) – Statement of Reasons Att 9 (D22/186518) – Sally See FFG Counsellor Att 25 (D22/184648) – FFG Website Screenshot Att 32 (D22/184671) – Searches for Counsellor Qualifications

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
			As at 14 October 2022 there is no record of a “Sally See” in the worker screening or contact information held by the Commission.	

NDIS Quality and Safeguards Commission

Evidence Matrix
Breach of NDIS Act s73B
Forward Focus Group Pty Ltd

NDIS Act 2013	Elements of Breach	Information/Evidence/Other	Reference Location
73B Requirement to be a registered NDIS provider (1) The National Disability Insurance Scheme rules may require that specified classes of supports provided under participants' plans are to be provided only by persons who are registered under section 73E to provide those classes of supports. Note: See also subsection 33(6), which provides that, if the funding for supports under a plan is managed by the Agency, supports are to be provided only by a registered NDIS provider. (2) A person must not provide a support under a participant's plan if: (a) the National Disability Insurance Scheme rules require the person to be registered to provide the support under the plan; and (b) the person is not so registered. Civil penalty: 250 penalty units.	Rules require registration	***National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*** **7 Classes of supports for which NDIS providers must be registered** (1) A person must be registered under section 73E of the Act to provide specialist disability accommodation under a participant's plan.	National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 (legislation.gov.au)
	Person is not so registered	Forward Focused Group Pty Ltd. Internal and external facing information about registration status. Including registration groups: • Household tasks • Assist – travel/transport	Att 6A (D22/184618) – Statement of Reasons Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile

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T9.2

NDIS Act 2013	Elements of Breach	Information/Evidence/Other	Reference Location
	Services offered	• The Forward Focused Group website indicates that they are a registered NDIS provider (Att 28). The website also indicates that they can offer SDA (Att 26) at three different locations: Safety Bay, Northbridge and Stirling (Att 27 and 28). • The Forward Focus Group website links to a facebook page (Att 33). • Facebook post of 28 September 2022 at 12:43 states FFG has four SDA vacancies and provides contact details for people seeking further information. • Facebook post 18 July 2022 (Att 39) is promoting their ability to offer a wide range of accommodation including SDA. • The Hive website (Att 29) includes information about home and living support services provided (Att31). • The website states the locations as Safety Bay, Northbridge and Cottesloe. • The Hive website (Att 29) links to a facebook page (Att 35). • Facebook post five days prior to 14 October 2022 (Att 35) the business is promoting their ability to offer a wide range of accommodation including SDA. • Facebook post 5 September 2022 (Att 36) the business is promoting their ability to offer a wide range of accommodation including SDA. Accommodation at Safety Bay, Cottesloe and Northbridge	Att 26 (D22/184649) – Service Offerings FFG Website Att 27 (D22/184650) – SDA Properties Screenshot Att 28 (D22/184651) – SDA Properties and Registered Provider Statement Screenshot Att 29 (D22/184662) – Hybrid Hive website screenshot Att 31 (D22/184665) – Hybrid Hive Service Offering screenshot Att 33 (D22/184702) – FFG Facebook Screenshot Offering SDA Att 35 (D22/184706) – Hybrid Hive Facebook Screenshot Offering SDA Att 36 (D22/184707) – Hybrid Hive Facebook Screenshot Offering SDA Att 39 (D22/184915) – FFG Facebook Screenshot Offering SDA

NDIS Quality and Safeguards Commission

Evidence Matrix

Breach of NDIS Act s73V

Forward Focus Group Pty Ltd, Vida Reid

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
73V NDIS Code of Conduct (3) A person contravenes this section if the person: (a) is subject to a requirement under the NDIS Code of Conduct; and (b) fails to comply with the requirement. Civil penalty: 250 penalty units.	**5 Persons covered by the NDIS Code of Conduct** (1) This Part is made for the purposes of section 73V of the Act. (2) Each of the following persons is a ***Code-covered person*** for the purposes of this instrument: (a) NDIS providers; (b) all persons employed or otherwise engaged by an NDIS provider. (3) Code-covered persons must comply with the NDIS Code of Conduct set out in section 6 of this instrument.	Subject to a requirement under the Code of Conduct.	Forward Focus Group are the over-arching name for Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd directed and run by Vida Reid and Simon Reid. Code-covered person – NDIS Provider and persons employed or otherwise engaged by an NDIS provider. Forward Focused Group Pty Ltd, Vida Reid are 'code-covered person'.	Att 6A (D22/184618) – Statement of Reasons
	6 NDIS Code of Conduct	Failed to	**6(a) - Act with respect for individual rights to**	Att 6 (D22/165201) – Key

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T9.3

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
	In providing supports or services to people with disability, a Code-covered person must: (a) act with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions; and (b) respect the privacy of people with disability; and (c) provide supports and services in a safe and competent manner, with care and skill; and (d) act with integrity, honesty and transparency; and (e) promptly take steps to raise and act on concerns about matters that may impact the quality and safety of supports and services provided to people with disability; and (f) take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability; and (g) take all reasonable steps to prevent	comply with a requirement.	**<u>freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions</u>** • In relation to participant, Alexsis Bott, FFG sought to obtain access to and control of participant funds. The email trail is initiated by an FFG employee to a plan manager seeking release of funds. The participant confirms that they, "won't be withdrawing funds from Marc at Manage Mode. I actually never said I would do this but was advised by Vida I should." Ms Reid, as FFG Founding Executive Director, then states conflict of interest and states "we will be terminating your services with us effective immediately". (Att 45). • Series of emails 24 June 2022 to 19 June 2022 provided by a former account manager and FFG employee regarding participant Sarah-Jane Clulow advising a four week notice for service termination. (Att 43) – Ms Clulow provides notices and requests that further correspondence be directed to a different person. – In a subsequent internal email to Rejaul Alam, Vida Reid and Simon Reid it is disclosed that Ms Clulow was contacted via phone call about her email. – It also comments that the participant is seeking	Issue Identification Template Att 6A (D22/184618) – Statement of Reasons Att 45 (D22/184969) – Alexsis Bott Changing Plan Manager Att 43 (D22/184942) – Service Termination Sarah-Jane Clulow Att 44 (D22/184944) – Service Termination Sarah-Jane Clulow Att 12 (D22/169604) – Sarah-Jane Clulow Complaint_06.07.22 Att 42

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
	and respond to sexual misconduct.		review of 'another invoice' for services not received. – On 1 July, FFG responds to an account statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us." [Note within four week period of ongoing service provision. Release personal client information to an external party]. (Att 44) – Complaint 430838840 – July 2022. The participant advises the Commission that FFG have claimed all of their Support Coordination funds and are acting fraudulently. The NDIA confirms overutilization of the plan. Also that FFG/Vida Reid are threatening eviction if invoices to The Hive are not paid. And on 14 July the participant advised she has received an eviction notice and has 60 days to find new accommodation. (Att 12) • Series of emails 15 June 2022 to 19 June 2022 provided by a former account manager and FFG employee regarding participant Corina Abraham ceasing some services with Hybrid Hive. (Att 42) – The participant seeks to meet to discuss their concerns. – Although not included in the original email a response is forthcoming from FFG, Vida Reid. – By email 19 June FFG through Ms Reid purports to cease support coordination and	(D22/184938) – Service Termination Corina Abraham Att 46 (D22/186568) - Tiffany Rose Invoices Att 47 (D22/186569) – Andrew Hahn Invoices Att 48 (D22/186578) – Marisha Lombard Invoices Att 49 (D22/186580) – Marisha Lombard Invoices Att 50 (D22/186592) – Andrew Hahn

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
			terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. – The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS. **<u>6(d) - Act with integrity, honesty and transparency</u>** • Information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that FFG generated invoices that did not match the services provided, or were generated without the necessary Plans / Services Agreements in place. (Att 46 and 47) • Emails dated 3 May and 9 May 2022, which show that Vida Reid is withholding information from other FFG staff on potentially fraudulent invoices. (Att 48 and 49) Example Email from Janine Hall, FFG Support Coordinator to Rejaul Alam, CFO dated 3 May 2022. Janine Hall's email raised a question regarding an invoice for Support Coordination services for a participant that she did not provide. The email states "My understanding is that there is $3097.71 in Support	Termination Notice Att 51 (D22/186590) – Andrew Hahn Threats of Eviction Att 52 (D22/186597) – FFG Reid Consent to Act Att 53 (D22/186600) – Max Teague Plan Management Att 54 (D22/186601) – Max Teague Plan Management Email to NDIA

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
			Coordination to cover this period, however I just received the end of month statement from Assist Plan Managers and I noticed that the balance remaining is only $393.87. I then noticed that a single invoice had been paid to FFG for $2027.84 for Support Coordination. This is not for any work that I have provided for Marisha or anyone else from FFG". (Att 48) Example 2 Email from Vida to employee dated 9 May 2022, "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity."…."I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures." • Correspondence between FFG and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for FFG to immediately terminate engagements with participants.	

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
			Example 1 Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a FFG-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". (Att 50) Email from advocate of participant Andrew Hahn dated 27 March 2022 requesting that threats of eviction from FFG cease. Email states "I have also reviewed Andy's Lodging Agreement with Forward Focused Group dated 21 January 2022. Rent payments per this agreement are paid up to date and Andy has not breached any terms of the Lodging Agreement. Please immediately discontinue unsubstantiated threats of eviction. Threats of eviction can be distressing to anybody and are particularly unwarranted in a disability housing provision context." (Att 51) Example 2 Participant Corina Abraham sought to amend her service agreement with FFG. On 19 June 2022, FFG through Ms Reid purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. (Att 42)	

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
			6(f) – Take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability Scenario of exploitation of people with disability • Seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support/funding decisions. Example FFG Document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), including consent to request review of NDIA decision, manage a complaint made by participant Meghan Goodwin (Att 52) Letter from DFG Legal WA stating: "Ms Vida Reid holds the current appointment as Meghan's legal plan nominee and next of kin, and we enclose the relevant documentation for your review." (Att 52) • The Commission holds information that suggests that FFG are withholding information from the NDIA when requesting changes to participants' plan arrangements.	

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	**Elements of Breach (es):**	**Information/Evidence/Other**	**Evidence Reference Location**
			Example Evidence held by the Commission includes an email to the NDIA from a Support Coordinator at Forward Focused Group (sent on direction of Ms Reid) which requests a change to a participant's plan arrangements. The email does not disclose to the NDIA that Forward Focused have been billing the participant without a Service Agreement or NDIS Plan. (Att 53 and 54)	

THE COMMISSION'S INVESTIGATION

The Commission commenced an investigation into the matters alleged by the complainants regarding Forward Focused Group and Ms Reid.

Please note, the National Disability Insurance Agency (NDIA) and (AFP) are currently conducting investigations into Forward Focused Group and Ms Reid, the outcomes of which are pending and have not been considered further in this briefing note.

The Commission's investigation involved reviewing complaints received about Forward Focused Group to date, and reviewing the statements and information provided by the complainants and the NDIA.

Where breaches of the NDIS Act have been evidenced this is included as the evidence matrices.

The Providers and Key personnel

Forward Focused Group (FFG) is an entity which appears to operate a number of related businesses that draw financial income from the NDIS (**Attachment 6A**).

An arm of the operations is a registered NDIS Provider, Forward Focused Group Pty Ltd, trading as Forward Focused (**Attachment 4**). A second arm of the business is an unregistered provider Hybrid Hive Pty Ltd, trading as The Hive (Attachment 6A).

As described in Attachment 6A the Commission is in possession of information from a number of sources including the Australian Securities and Investment Commission, online information, copies of internal company emails and company structure documents that indicate FFG includes both registered NDIS provider and unregistered providers. FFG is owned and operated by

- The Founding Executive Director, Vida Reid.
- The Co-founding Executive Director, Simon Reid.

Vida Reid

According to the NDIA Report (Attachment 5), Ms Reid is an NDIS participant and met access in 2020 for Multiple Sclerosis after multiple access attempts. Ms Reid and Mr Reid have a child, Alexander Reid (born 2015) who met access in 2018 as a defined participant.

According to our searches of ASIC data available to the Commission (Attachment 6A, 17, 18) Ms Reid is currently a director of Forward Focused Group Pty Ltd and is a former director of Hybrid Hive Pty Ltd.

The Commission holds copies of documents where "[Ms Reid] threatens participants and ex-employees with letters from a lawyer at DFG Legal (Attachment 8). This appears to be a legitimate legal firm. It is unknown if Ms Reid is associated with any individuals at the firm or if the letters are legitimate.

A criminal history search sourced by the Commission included charges from within the past 10 years (Attachment 6A, 40).

Simon Reid

According to the searches of ASIC data available to the Commission (Attachment 6A, 17, 18, 19) Simon is listed as a former director of Forward Focused Group Pty Ltd with a role end date of 3 January 2021 (Attachment 6A, 17). And is a current director for Hybrid Hive Pty Ltd and The Hive Pty Ltd.

Despite emails for FFG and The Hive being directed to or including Simon Reid the Commission has limited information about his actual involvement in the operations.

A criminal history search sourced by the Commission included charges from within the past 10 years (Attachment 6A, 37).

ASSESSMENT

Compliance WA and Compliance QLD/NT has completed a comprehensive assessment of the evidence and information obtained in this matter. Given the large volume of evidence and multiple allegations made against Forward Focused Group and Ms Reid, the assessment of the evidence has not been replicated within this document, nor has all the evidence been provided as an attachment. The evidence of direct relevance to the alleged breaches of the NDIS Act, including the NDIS Code of Conduct and the NDIS Practice Standards has been summarised and attached.

Unfortunately, due to the recurrent or frequent nature of the some alleged conduct, Compliance WA and Compliance QLD/NT have not been able to ascertain specific dates of all of the contraventions identified. However, we can confirm that the conduct occurred after the commencement of the NDIS Code of Conduct in WA (1 December 2020).

Compliance WA and Compliance QLD/NT has placed importance on the information provided by Danica Hall and Janine Hall, regarding consideration of actions the Commission should take. The information provided is consistent and demonstrates a pattern of behaviour by FFG and Ms Reid in terms of the type of support she provides NDIS participants, and the control and manipulative behaviour she exerts over NDIS participants.

According to the NDIA Report, Forward Focused Group provided services to 141 participants **(Attachment 5**).

Compliance (WA) and Compliance (QLD/NT) hold concerns about the risk associated with Forward Focused Group Pty Ltd continuing to operate as a registered NDIS provider and supporting vulnerable NDIS participants, given the seriousness of the provider's contraventions of the NDIS Act. Particularly those relating to breaches of the NDIS Code of Conduct.

Compliance (WA) and Compliance (QLD/NT) considers Forward Focused Group's conduct, in particular, the failure to act with integrity, honesty and transparency, is serious and warrants action by the Commission.

<u>Necessary considerations</u>
Both the Suspension of registration and revocation of registration require the Commissioner (or their delegate) to have regard to the following matters:

(a) the nature, significance and persistence of any contravention, or proposed contravention, of this Act;

- The conduct of Forward Focused Group towards NDIS participants are very serious and warrants action to ensure Forward Focused Group cannot continue to operate as a registered NDIS provider.
- The evidence available to the Commission strongly suggests that the provider is committing fraud by charging participants for services not provided, or excessive amounts. According to the NDIA, it is highly likely that both Directors of Forward Focused Group (Ms Vida Reid and Mr Simon Reid) and the Chief Financial Officer (Mr Rejaul Alam) have committed the alleged fraudulent activities.
- Information held by the Commission also indicates that Forward Focused is providing supports and services that they are not registered to provide.
- The information provided by complainants also strongly indicate a pattern of bullying, harassment and intimidating behaviour displayed by the Director Ms Reid towards NDIS participants.

(b) action that can be taken to address any contravention, or proposed contravention, of this Act;

- Given the nature of the conduct described above and noting that it appears to be intentional and recurrent, Compliance (WA) and Compliance (QLD/NT) considers it unlikely that the key personnel of Forward Focused Group will fully implement any corrective action prescribed by the Commission to address the provider's contravention.

(c) the extent (if any) to which the person is conducting its affairs as a registered NDIS provider in a way that may cause harm to, or jeopardise, public trust in the National Disability Insurance Scheme;

- Based on the seriousness of Forward Focused and Vida Reid's conduct and the potential impacts on NDIS participants, the risk of not taking all measures available to the Commission may reflect poorly on the Commission and the NDIS.
- Immediately suspending the registration and seeking to revoke the registration of Forward Focused may increase community confidence in the Commission and its role to protect vulnerable persons with disability from experiencing harm, including from financial abuse or exploitation.

(d) the health, safety or wellbeing of people with disability receiving supports or services from the person;

- Forward Focused breaches of the NDIS Code of Conduct are particularly concerning. For the reasons detailed here and in the attachments, Compliance (WA) and Compliance (QLD/NT) remains of the view there is an ongoing need to protect the interests, safety and wellbeing of vulnerable persons receiving disability supports and services.

(e) any other matter the Commissioner considers relevant.

Complainant information

The Commission has received direct and indirect information from former employees, and former participants and their advocates. This information is summarised below and reflects

the ongoing nature, significance and persistence of the contraventions and proposed contraventions of the Act.

Danica Hall

Danica Hall is a previous employee of Forward Focused Group, who commenced in her role as an Accounts Officer in December 2021. Danica Hall resigned from her role on 19 July 2022.

Danica Hall provided the Commission with an 'Evidence Package' in July 2022. The 'Evidence Package' includes a statement from Danica Hall, given to the former Acting Assistant Director, Compliance (WA), Cade Brown. (**Attachment 7**)

The statement contains a number of allegations of fraudulent activity, and bullying, harassment and intimidation tactics conducted by Ms Reid and Forward Focused Group.

The key allegations made in Danica Hall's statement are summarised below. Where the Commission holds evidence, or information that suggests the validity of the allegations made in the statement, these are referenced in the Key Issue Identification document at **Attachment 6, 6A and 6B**.

The key allegations included in Danica Hall's statement include:

- Invoices sent for services never provided under participants' current plans, or from expired plans that have remaining funds available. Many invoices have been sent for excessive amounts.
- Conflicts of interest presented by:
    - Forward Focused Group and The Hive Pty Ltd being owned by the same people,
    - Ms Reid acting as the primary person for some participants with authority to approve invoices, usually without the participant knowing and/or understanding that this presents a conflict of interest.
- Ms Reid's bullying and harassment behaviours towards participants and staff. These include threats of suing people and engaging with her lawyers, and allegedly unsubstantiated threats of eviction from Forward Focused Group-managed properties.
- Charging participants without the relevant information or documentation e.g. NDIS Plans and Service Agreements
- Ms Reid limiting and removing participant with choice and control on how they want their plans to be managed
- False information posted on the Forward Focused Group's Facebook page regarding the programs offered by Forward Focused and number of staff members
- Forward Focused Group's posting of participants' photos and quotes without their consent
- Behaviours she described as workplace bullying, harassment and grooming
- No evidence of incident reporting or complaints policy in place
- That staff are provided minimal to no training, and lack formal qualifications.

Janine Hall

On or around 18 July 2022, Janine Hall, a Support Coordinator with Forward Focused Group, provided the Commission with information containing allegations against Forward Focused Group and Ms Reid. (See **Attachment 9A, 9B, 9C, 9D**).

Janine Hall provided the Commission with an 'Evidence Package' in July 2022. The 'Evidence Package' includes a written summary given to the former Acting Assistant Director, Compliance (WA), Cade Brown (Attachment 9A).

The statement contains a number of allegations of fraudulent activity, and bullying, harassment and intimidation tactics conducted by FFG and the Founding Executive Director.

The key allegations included in Janine Hall's statement include:

- Using letters from a lawyer threatening to evict participant Andrew Hahn from his accommodation Janine Hall alleges that this occurred after Mr Hahn started to ask questions about amounts he was being charged.
- Charging participants for supports they are not receiving, and overcharging participants for supports they are receiving.
- Withholding relevant information from staff, and attempting to restrict staff access to information, when questioned on the accuracy of invoices.
- Lack of honesty and integrity as referred to in the resignation letter sent from a Support Coordinator to Ms Reid dated 1 July 2022.
- Provision of irregular, ad hoc and unqualified support services to high-risk participants

In her statement, Janine Hall attaches a number of invoices from Forward Focused Group and the Hybrid Hive. She alleges that they indicate fraudulent activities by the provider/s.

<u>Tabatha Sadler</u>

- On 17 July 2022, Tabatha Sadler, a Recovery Support Worker working for another organisation contacted the Commission to raise her concerns for the welfare of Forward Focused Group participant Meghan Goodwin (who she previously provided support services to but remains in contact with) (See **Attachment 10**).
- Ms Sadler raised a number concerns regarding the safety of the supports and services provided by Forward Focused Group to Ms Goodwin, and examples of the controlling and threatening behaviour displayed by Ms Reid towards Ms Goodwin.
- Ms Sadler stated in her email that Ms Goodwin is fearful of the repercussions from Ms Reid or other staff members from Forward Focused Group if she shares any information on these issues. [See **Attachment 6**]

<u>Sarah-Jane Clulow</u>

- Participant Sarah-Jane Clulow lodged a complaint with the Commission on or around 6 July 2022 and contacted the Commission on 12 July 2022 to further discuss her complaint. (See **Attachment 12**).

- Ms Clulow made a number of allegations which are consistent with allegations received from other complainants.

Ms Clulow's allegations included:

- Forward Focused Group have claimed all of her Support Coordination funding before the expiration of her plan
    - Ms Clulow is concerned that her accommodation is not appropriate as she is in a wheelchair, and is concerned that she may be evicted
    - Ms Reid is threatening to evict Ms Clulow from her accommodation if she does not approve invoices from Hybrid Hive Pty Ltd
    - Ms Reid has requested that Ms Clulow be agency-managed (instead of plan-managed) without prior consultation or consent from Ms Clulow

    - Ms Reid is contacting other NDIS providers and making false allegations that Ms Clulow has displayed racist, aggressive behaviour towards Support Workers.
- Information from the NDIA supports Ms Clulow's allegation of overutilisation of plan funding. The NDIA stated in an email dated 12 July 2022 to the Commission:
    - "The NDIA have considered Ms Clulow's current plan and it appears 14% of time has elapsed and the budget's utilisation is 31%. This indicates that there has been overutilisation of her plan funding."
    - "The NDIA acknowledge that the current Support Coordinator (Forward Focused Group) and service provider, The Hive are known to the Agency and that the two organisations are linked, indicating a possible conflict of interest with regards to the overutilisation of funding."

Jan Nuttall

- Jan Nuttall was previously employed with Forward Focused Group as an Operations Manager. Ms Nuttall contacted the NDIA on 11 August 2022 to lodge a complaint against Ms Reid and Forward Focused Group. (**Attachment 13**)

- Ms Nuttall made a number of allegations against Ms Reid and Forward Focused Group, which are consistent with allegations received from other complainants. Ms Nuttall's allegations included:
    - Forward Focused Group is an extremely siloed organisation. Ms Reid and the CFO have control over the actions of staff to perform their duties. This includes Support Coordinators not having ready access to plan information they have consent for. This information is held by the CFO and is only provided on request
    - The CFO was the only one to generate invoices and would 'stand over' staff to ensure they were submitted through the portal and not queried or questioned
    - Ms Nuttall provided examples of several occasions where funds were claimed but no services were delivered to a participant, or excessive amounts were claimed
    - Ms Reid uses threats and intimidation towards participants to control their funds, coercing participants to sign agreements and not letting them read or have a copy of any signed documents after the fact
    - Ms Reid uses bullying and intimidation tactics via threats to evict participants from their accommodation and take legal action
    - Ms Reid threatens exiting staff with legal action, should they release information about their experiences at Forward Focused Group.

Suggested course of action

The alleged conduct occurred while Ms Reid was the Director of Forward Focused Group, a position she currently holds.

Compliance WA and Compliance QLD/NT considers the issuing of:

1. a Suspension of registration with immediate effect to Forward Focused Group Pty Ltd;
2. a Notice of Intention to revoke the registration of Forward Focused Group Pty Ltd; and
    2a. a Banning Order (which is connected to the revocation of registration).
3. a Notice of Intention to issue a Banning Order to Vida Reid

We believe this to be an appropriate and proportionate regulatory response to the alleged conduct of Forward Focused Group and Ms Reid.

- The seriousness of the alleged conduct by Ms Reid and Forward Focused Group, and the element of dishonesty in the nature of the alleged offences
- The methodical nature of the alleged offending over a period suggesting the conduct, if engaged by Ms Reid, was deliberate, particularly noting Ms Reid's experience and knowledge of the NDIS as an NDIS participant
- The alleged fraud-related offences are expected to have impacted the funds available to multiple NDIS participants.
- It is a critical role of the Commission to protect vulnerable persons with disability from experiencing harm, including from financial abuse or exploitation
- The need to ensure the financial sustainability, and maintain community confidence in the NDIS
- The need to act expeditiously to ensure other NDIS participants are not put at risk unnecessarily
- The suggested actions will provide a strong level of protection and safeguarding for NDIS participants

Banning Order/s

When determining whether a person is suitable to be providing supports and services to people with disability, the delegate does not require any relevant criminal matters to have been finalised before deciding to make a Banning Order against an individual. The service of a banning order against Ms Reid is an administrative decision. The Banning Order may be varied or revoked, should new information be provided to the Commission.

Importantly, if a Banning Order is issued to Ms Reid, the Banning Order will not prevent her or her son's access to NDIS funded supports and services. However, Ms Reid will be unable to be the provider of NDIS funded supports and services to her son, which, in any case, is discouraged by the NDIA.

A Banning Order would restrict Ms Reid's capacity to earn an income. Compliance (WA) and Compliance (QLD/NT) acknowledge the imposition of a Banning Order will affect her employment opportunities. However, it is with in the Commission's responsibilities to consider the suitability of Ms Reid, and for the delegate to weigh up the interests of Ms Reid in continuing to work in the disability sector against the interests of NDIS participants.

The NDIA has measures in place relating to Ms Reid and Forward Focused Group. Whilst it's acknowledged that Forward Focused Group was the subject of an NDIA compliance lock on 3 May 2022, the Banning Order relates to Ms Reid's suitability to be involved in the disability sector. The NDIA's action relate to the protection of government assets, while it is for the Commission to make a determination in relation to Ms Reid's suitability to remain in the disability sector.

In considering the length of any banning order, it is acknowledged that while Ms Reid has not been convicted of any criminal offence in relation to the matter set out in this brief, we need to ensure that participants are not put at risk.

The Banning Order for a period of ten years will act as a preventative and protective measure to ensure Ms Reid does not have the opportunity to engage in any activities of concern.

The compliance team, if provided with an outcome of criminal proceedings relating to Ms Reid, will assess the outcome and consider whether to make a recommendation to the delegate to consider varying the Banning Order.

Compliance has made the NDIA aware that a banning order against Ms Reid and revocation of the registration of Forward Focused Group Pty Ltd is a possible outcome of our investigation. The team continues to work with the NDIA and relevant support coordinators to ensure these NDIS participants continue to receive supports.

Alternative Options

Compliance (WA) and Compliance (QLD/NT) maintains the view that lower-level or alternative enforcement options (such as a warning letter, compliance notice or infringement notice) are not appropriate given the adverse impact of Ms Reid's and Forward Focused Group's conduct. The NDIS participants' vulnerability to this type of exploitation and the evident risk of further harm to NDIS participants if Forward Focused Group and Ms Reid remain registered and continue to provide supports to people with disability.